

OMB Control No: 0970-0114

Expiration date: 03/31/2027

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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory New Hampshire

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:34:15 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

ELIGIBILITY AND ENROLLMENT:CONTINUITY OF CARE (12-MONTH ELIGIBILITY)

Reason(s) for non-compliance:

- The Lead Agency does not always provide a minimum 12-month eligibility period for each child, as required by 98.21(a)(1). (Plan Questions 2.5.2a and 2.5.2c)
- The Lead Agency does not appropriately limit what families must report during the 12-month eligibility period to allowable information, as required by 98.21(h)(2). (Plan Question 2.5.4)

Overall Target Completion Date: 10/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	98.21 (a)(1)-NH currently evaluates subsidy eligibility at the family (rather than the child) level. NH DHHS will identify modifications to the eligibility system and edits to NH Administrative Rule for modifying this process/timeline to allow for 12-months of continuous eligibility for each individual child.	02/28/2025
2	98.21 (a)(1)-Review rule changes with the Department's Administrative Rules Unit. Hold public hearing. Attend the Joint Legislative Committee for Administrative Rules meeting.	09/30/2025
3	98.21(h)(2)-Complete edits to NH Administrative Rule He-C 6910 regarding the reporting requirements for families regarding a permanent start of employment and adoption of a child during the 12-month eligibility period.	12/31/2024
4	98.21(h)(2)-Review rule changes with the Department's Administrative Rules Unit. Hold public hearing. Attend the Joint Legislative Committee for Administrative Rules meeting.	09/30/2025
5	Rule changes are adopted. Review changes to rule with Bureau of Family Assistance's Training Unit for updates to child care refresher trainings. Caseworkers are also informed of the rule changes through a Supervisory Release notification.	10/31/2025

ELIGIBILITY AND ENROLLMENT:ELIGIBILITY

Reason(s) for non-compliance:

- The Lead Agency's policy to exempt all income from legal guardians of unrelated children in the household is unallowable, per 98.20(a)(2). (Plan Question 2.2.4c)

Overall Target Completion Date: 10/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Complete edits to remove language in NH Administrative Rule He-C 6910 exempting income from legal guardians	12/31/2024
2	Review rule changes with the Department's Administrative Rules Unit. Hold public hearing. Attend the Joint Legislative Committee for Administrative Rules meeting.	09/30/2025
3	Rule changes are adopted. Review changes to rule with Bureau of Family Assistance's Training Unit for updates to child care refresher trainings. Caseworkers are also informed of the rule changes through a Supervisory Release.	10/31/2025

EQUAL ACCESS:AFFORDABILITY

Reason(s) for non-compliance:

- The Lead Agency does not provide data on the extent to which CCDF providers charge families additional amounts above the required co-payments (including data on the size and frequency of such amounts), as required by 98.45(b)(5). (Plan Question 3.1.2eii)

Overall Target Completion Date: 10/01/2024

Action Step Number	Action Step Description	Target Completion Date
1	NH DHHS has added fields to New Hampshire Connections Information System (NHCIS) on the provider profile asking providers questions related to any cost share charges to parents.	10/01/2024

EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 01/31/2027

Action Step Number	Action Step Description	Target Completion Date
1	This transition to prospective provider payment was recently enacted by OCC as part of the new CCDF Final Rule. NH has requested a waiver of this requirement until August 1, 2026 to permit time for changes to internal processes, updates to its payment system and an administrative rule change	08/01/2026
2	NH DHHS will add language for prospective payments to NH Administrative Rule He-C 6918	01/31/2026
3	NH DHHS will review rule changes with the Department's Administrative Rules Unit. Hold public hearing. Attend the Joint Legislative Committee for Administrative Rules meeting.	12/31/2026
4	Rule changes are adopted. Prospective payments start for providers.	01/31/2027

EQUAL ACCESS:PAYMENT RATES

Reason(s) for non-compliance:

- The Lead Agency did not consult with local child care program administrators prior to conducting a market rate survey or alternative methodology, as required by 98.45(e)(1). (Plan Question 4.2.1cii)
- The Lead Agency does not sufficiently address the methodology used to complete the narrow cost analysis or estimated cost of care, the variations in analysis, assumptions and data included in the methodology, or consideration of higher-quality care, as required by 98.45(f)(1)(ii). (Plan Questions 4.2.2a, 4.2.2b, 4.2.2c, and 4.2.2d)

Overall Target Completion Date: 02/28/2026

Action Step Number	Action Step Description	Target Completion Date
1	As the state approaches its next Market Rate Survey/Narrow Cost Analysis in 2026, it will ensure full compliance by... Market Rate Survey: Identifying key local child care program administrators to form a consultation group. Establishing regular provider communication channels around the MRS (e.g., quarterly meetings, email updates). Scheduling meetings and surveys to gather input on market rate survey, NCA or alternative methodology. Recording all feedback and integrate relevant insights into the survey process. Documenting formal procedures to consult stakeholders prior to conducting surveys. Training staff to implement these procedures effectively. Collecting feedback from stakeholders on the	02/28/2026

	consultation process and improve as necessary. Narrow Cost Analysis: Assessing the existing narrow cost analysis, including assumptions, data sources, and quality considerations. Working with UNH Casey School of Public Policy for expert support. Providing clearer explanations of: Assumptions used in the analysis. Variations in cost analysis (e.g., geographic, program size). Higher-quality care cost considerations (e.g., wages, facilities, accreditation). Sharing methodology drafts with child care providers, administrators, and advocacy groups for feedback. Documenting the application of the revised methodology in reports. Reviewing the process annually and make adjustments as needed	
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EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	This transition to grants/contracts as one form of payment for direct service was recently enacted by OCC as part of the new CCDF Final Rule. NH has requested a waiver of this requirement until August 1, 2026 to permit time for changes to internal processes, and determine if an administrative rule change is required, and for the development of agreement templates and program standards, subject to approval of Governor and Council.	08/01/2026

HEALTH AND SAFETY:CHILD DEVELOPMENT

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on child development for licensed centers, licensed family child care homes, license-exempt centers, license-exempt family child care homes, or license-exempt in-home providers, as required by 98.44(b)(1)(iii). (Plan Question 5.4.1I)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care homes, or an annual inspection for license-exempt centers or license-exempt family child care homes for compliance with pre-service or orientation training requirements related to child development, as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 09/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	NH DHHS will add a requirement for training to include □approaches to learning□ in NH Administrative Rule He-C 4002. DHHS will monitor the requirement once this is added to the rule.	09/30/2025
2	Identify required edits to add the 5 domains of child development to NH Administrative Rule He-C 6914.	12/31/2024

3	NH DHHS will review rule changes with its Administrative Rules Unit, hold a public hearing, and attend the Joint Legislative Committee for Administrative Rules meeting.	04/30/2025
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HEALTH AND SAFETY:EMERGENCY PREPAREDNESS AND RESPONSE PLANNING

Reason(s) for non-compliance:

- The Lead Agency standard for emergency preparedness and response planning does not include volunteer training or practice drills for licensed centers, as required by 98.41(a)(1)(vii). (Plan Question 5.3.7vi)
- The Lead Agency does not require pre-service or orientation training on emergency preparedness and response planning for licensed centers, licensed family child care homes, license-exempt centers, license-exempt family child care homes, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1g)
- The Lead Agency does not require an annual unannounced inspection for licensed centers for compliance with standards for emergency preparedness and response planning or with related pre-service or orientation training requirements. Additionally, the Lead Agency does not require an annual unannounced inspection for licensed family child care providers, or an annual inspection for license-exempt centers or license-exempt family child care providers for compliance with pre-service or orientation training requirements related to emergency preparedness and response planning, as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 09/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	NH DHHS Child Care Licensing Unit completes rules-based inspections. Emergency preparedness and response training is listed in NH Administrative Rule He-C 6914 as a preservice/orientation requirement.	12/31/2024
2	NH Administrative Rule He-C 4002 will be revised to clarify that volunteers used as a staff person to meet child to staff ratios are required to complete emergency preparedness training and participate	09/30/2025

	in drills. Once added to the rule, programs will be monitored for the requirement.	
3	Due to edits in 2022 rule revision, the cross reference in the Emergency Operations Plan training requirements to the Emergency Operations Plan components inadvertently omitted communication and reunification with families. However, per He-C 4002.16(h), accommodations for infants and toddlers, children with disabilities, and children with chronic medical conditions is a required component of the response actions developed in the EOP in accordance with He-C 4002.16(g)(3), and the training requirement in He-C 4002.33(b)(14) specifies that training include the components in He-C 4002.16(g)(3). Therefore, NH respectfully disagrees that accommodations for infants and toddlers, children with disabilities, and children with chronic medical conditions is not covered as a required component of training in emergency preparedness. He-C 4002.16(g)(2) requires that EOPs include procedures for communications and reunification with families, and He-C 4002.16(j) requires that staff review EOPs within 30 days of hire. He-C 4002 is currently under revision and will specifically include communication and reunification with families as part of the training. Once added to the rule, programs will be monitored for the requirement.	09/30/2025
4	NH DHHS will identify edits to the individual requirements for emergency preparedness and response training to NH Administrative Rule He-C 6914.	12/31/2024
5	NH DHHS will review rule changes with the Department's Administrative Rules Unit. Hold public hearing. Attend the Joint Legislative Committee for Administrative Rules meeting.	04/30/2025

HEALTH AND SAFETY:ONGOING TRAINING

Reason(s) for non-compliance:

- The Lead Agency does not have requirements for ongoing training on health and safety standards for substitutes in licensed centers or licensed family child care homes, as required by 98.44(b)(2)(i). (Plan Questions 5.6.1a and 5.6.1c)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with ongoing training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 09/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Substitutes who are employed by a child care program on a regular basis will be required to complete annual health and safety training under a rule revision for NH Administrative Rule He-C 4002 that is currently in process. Once added to the rule, programs will be monitored for the requirement.	09/30/2025

HEALTH AND SAFETY:PREVENTION AND CONTROL OF INFECTIOUS DISEASES

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on prevention and control of infectious diseases (including immunizations) for licensed centers, licensed family child care homes, license-exempt centers, license-exempt family child care homes, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1a)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care homes, or an annual inspection for license-exempt centers or license-exempt family child care homes for pre-service or orientation training requirements related to prevention and control of infectious diseases (including immunizations), as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 09/30/2025

Action Step Number	Action Step Description	Target Completion Date

1	NH DHHS will identify edits needed to add immunizations to pre-service/orientation training requirements for prevention & control of infectious diseases to Administrative Rule He-C 6914.	12/31/2024
2	NH DHHS will review rule changes with the Department's Administrative Rules Unit. Hold public hearing. Attend the Joint Legislative Committee for Administrative Rules meeting.	04/30/2025
3	NH Administrative Rule He-C 4002 is currently under revision, and a cross reference in the training requirements to the rules related to exemptions and grace periods for immunizations will be part of that revision. Once added to the rule, programs will be monitored for the requirement.	09/30/2025

HEALTH AND SAFETY:PREVENTION OF SHAKEN BABY SYNDROME, ABUSIVE HEAD TRAUMA, AND CHILD MALTREATMENT

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the prevention of shaken baby syndrome and abusive head trauma for licensed centers or licensed family child care homes, as required by 98.41(a)(1)(vi). (Plan Questions 5.3.6ai and 5.3.6aii)
- The Lead Agency does not require pre-service or orientation training on prevention of child maltreatment for license-exempt centers, license-exempt family child care homes, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1f)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for prevention of shaken baby syndrome and abusive head trauma. Additionally, the Lead Agency does not require an annual inspection for license-exempt centers or license-exempt family child care homes for compliance with pre-service or orientation training related to the prevention of child maltreatment, as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 05/31/2025

Action Step Number	Action Step Description	Target Completion Date
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1	For Prevention of Shaken Baby Syndrome, Abusive Head Trauma, and Child Maltreatment (98.41(a)(1)(vi), OCC has determined this is no longer a non-compliant area.	11/30/2024
2	NH DHHS will add child maltreatment to orientation & training requirements in Administrative Rule He-C 6914.	12/31/2024
3	Review rule changes with the Administrative Rules Unit. Hold public hearing. Attend the Joint Legislative Committee for Administrative Rules meeting.	04/30/2025
4	Rule changes are adopted. DHHS begins actively monitoring this requirement.	05/31/2025

COMPREHENSIVE BACKGROUND CHECK:5 YEAR RENEWAL

Reason(s) for non-compliance:

- The Lead Agency does not conduct all background checks every 5 years, as required by 98.43(d)(2)(ii). (Plan Question 5.7.17)

Overall Target Completion Date: 10/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	NH DHHS will identify modifications to the NH Administrative Rule He-C 4002 to comply with the requirement.	12/31/2024
2	NH DHHS will review rule changes with the Department's Administrative Rules Unit. Hold public hearing. Attend the Joint Legislative Committee for Administrative Rules meeting.	09/30/2025
3	Rules are adopted. DHHS begins actively monitoring this requirement.	10/31/2025

COMPREHENSIVE BACKGROUND CHECK:IN-STATE

Reason(s) for non-compliance:

- The Lead Agency does not require and conduct in-state criminal history background checks with fingerprint for all child care staff members under age 18 (including prospective staff members), as required by 98.43(b)(3)(i), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.1a)

Overall Target Completion Date: 10/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	NH DHHS will identify modifications to the NH Administrative Rule He-C 4002 to comply with the requirement.	12/31/2024
2	NH DHHS will review rule changes with the Department's Administrative Rules Unit. Hold public hearing. Attend the Joint Legislative Committee for Administrative Rules meeting.	09/30/2025
3	Rules are adopted. DHHS begins actively monitoring this requirement.	10/31/2025

COMPREHENSIVE BACKGROUND CHECK:NATIONAL FINGERPRINT

Reason(s) for non-compliance:

- The Lead Agency does not require and conduct FBI criminal history background checks with fingerprint for all child care staff members under age 18 (including prospective staff members) , as required by 98.43(b)(1), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.2a)

Overall Target Completion Date: 10/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	NH DHHS will identify modifications to the NH Administrative Rule He-C 4002 to comply with the requirement.	12/31/2024

2	NH DHHS will review rule changes with the Department's Administrative Rules Unit. Hold public hearing. Attend the Joint Legislative Committee for Administrative Rules meeting.	09/30/2025
3	Rules are adopted. DHHS begins actively monitoring this requirement.	10/31/2025

COMPREHENSIVE BACKGROUND CHECK:PRE-SERVICE CHECK REQUIREMENTS (PROVISIONAL HIRE)

Reason(s) for non-compliance:

- The Lead Agency does not require a qualifying result on a prospective staff member under age 18 from an FBI criminal background check or an in-state criminal background check with fingerprints before they begin work, as required by 98.43(d)(4). (Plan Questions 5.7.12a and 5.7.12b)

Overall Target Completion Date: 10/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	NH DHHS will identify modifications to the NH Administrative Rule He-C 4002 and He-C 6914 to comply with the requirement.	12/31/2024
2	NH DHHS will review rule changes with the Department's Administrative Rules Unit. Hold public hearing. Attend the Joint Legislative Committee for Administrative Rules meeting.	09/30/2025
3	Rules are adopted. DHHS begins actively monitoring this requirement.	10/31/2025

PROGRAM INTEGRITY:EFFECTIVE INTERNAL CONTROLS

Reason(s) for non-compliance:

- The Lead Agency does not describe processes to train staff who administer the CCDF program and providers about program integrity, as required by 98.68(a)(3). (Plan Questions 10.1.5ai and 10.1.5bi)

Overall Target Completion Date: 08/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Identify program integrity training for DHHS staff and enrolled providers will be created and implemented. Training for child care providers will be offered through Pro-Solutions with an expiration of three years so the training is completed for each renewal. (a) Lead Agencies are required to describe in their Plan effective internal controls that are in place to ensure integrity and accountability, while maintaining continuity of services, in the CCDF program. These shall include: (1) Processes to ensure sound fiscal management; (2) Processes to identify areas of risk; (3) Processes to train child care providers and staff of the Lead Agency and other agencies engaged in the administration of CCDF about program requirements and integrity; and (4) Regular evaluation of internal control activities.	12/31/2024
2	NH DHHS' contracted vendor will work with DHHS to create training slides of CCDF/Scholarship information to send to ProSolutions for upload on NHCIS.	08/31/2025

PROGRAM INTEGRITY:FRAUD INVESTIGATION, PAYMENT RECOVERY, AND SANCTIONS

Reason(s) for non-compliance:

- The Lead Agency does not include the results of activities to identify program violations, as required by 98.68(b)(1). (Plan Question 10.2.1)
- The Lead Agency does not include the results of activities to investigate and recover fraudulent payments, as required by 98.68(b)(2). (Plan Question 10.2.2b)
- The Lead Agency does not have processes to impose sanctions on clients in response to fraud, as required by 98.68(b)(2). (Plan Question 10.2.2e)

Overall Target Completion Date: 03/31/2026

Action Step Number	Action Step Description	Target Completion Date
1	NH DHHS will identify edits required to be added to Administrative Rule He-C 6910 regarding identification of fraudulent activities, recovery of payments and sanctions for clients who commit fraud.	01/31/2025
2	NH DHHS will review rule changes with the Department's Administrative Rules Unit. Hold public hearing. Attend the Joint Legislative Committee for Administrative Rules meeting.	01/31/2026
3	Rule changes are adopted. DHHS begins actively monitoring this requirement.	02/28/2026
4	Once the rule is adopted. DHHS's Special Investigations Unit will track frequency and results of investigations and recovery/recoupment efforts to report to the Federal Office of Child Care.	03/31/2026

**QUALITY IMPROVEMENT AND SUPPORT FOR CHILD CARE
WORKFORCE:PROFESSIONAL DEVELOPMENT**

Reason(s) for non-compliance:

- The Lead Agency does not have an annual requirement for a minimum number of hours of ongoing professional development for substitutes in licensed child care centers or licensed family child care homes, as required by 98.44(b)(2). (Plan Questions 6.3.1a and 6.3.1c)

Overall Target Completion Date: 09/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	This is the same as HEALTH AND SAFETY: ONGOING TRAINING above. Substitutes who are employed by a child care program on a regular basis will be required to complete annual health and safety training in the rule revision for NH Administrative Rule He-C 4002 that is currently in process. Once added to the rule, programs will be monitored for the requirement.	09/30/2025